Master Services Agreement

Effective November 2, 2026. This Master Services Agreement supersedes prior versions for Orders signed on or after its effective date. Orders signed earlier remain governed by the version identified in, or in effect on the date of, that Order.

This Master Services Agreement (the “MSA”) is between The Boom Company (dba Boom Logic) (“Provider,” “we,” “us,” or “our”) and the client identified in the applicable quotation, proposal, statement of work, or order that the parties sign (each, an “Order”) (“Client,” “you,” or “your”). Provider and Client are each a “Party” and together the “Parties.” This MSA applies to every Order that references it.

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1. Structure of the Agreement

1.1 Contract Documents

Each Order, together with this MSA and the other documents identified in this Section (the “Contract Documents”), forms a single agreement for the Services described in that Order (the “Agreement”). The Contract Documents are: (a) the Order, including any addendum or rider signed by both Parties; (b) this MSA; (c) the Business Associate Agreement, where it applies under Section 13.2; (d) the Data Processing Agreement, where it applies under Section 13.3; (e) each Service Attachment for the Services in the Order; (f) the Service Level Schedule; and (g) the Schedule of Services and the Schedule of Third-Party Services.

1.2 Version Lock

Each Contract Document is incorporated in the version identified in the Order or, if the Order does not identify a version, the version in effect on the date the Order is signed by both Parties (the “Order Effective Date”). Each version is identified by its title and effective date and is published as a date-stamped PDF at a permanent address on Provider’s legal portal

(legal.theboomcoinc.com/pdf/) that Provider will not alter or remove; that PDF is the authoritative text of that version. Later versions do not apply to an existing Order except as provided in Section 1.4.

1.3 Order of Precedence

If Contract Documents conflict, they control in this order: (a) an addendum or rider signed by both Parties, and then the Order; (b) the Business Associate Agreement, solely as to Protected Health Information, and the Data Processing Agreement, solely as to the regulated data it covers; (c) this MSA; (d) the applicable Service Attachment; (e) the Service Level Schedule; and (f) the Schedule of Services and the Schedule of Third-Party Services. A more specific provision on the same subject controls over a more general one only where the documents are of equal rank. For BoomTalk™ VoIP Services, the BoomTalk™ VoIP Terms of Service and the 911/E911 Notification and Disclosures control as to telecommunications-regulatory matters, 911/E911, numbering, porting, acceptable use of the voice network, and network operations; this MSA controls as to term, fees, payment, termination, liability, indemnity, and dispute resolution; any “entire agreement” or similar clause in the BoomTalk™ VoIP Terms of Service does not displace the other Contract Documents; and Section 1.4 of this MSA governs changes to the BoomTalk™ VoIP Terms of Service and the 911/E911 Notification and Disclosures as they apply to an existing Order, notwithstanding any modification clause in those documents, except changes required by law or by the FCC or other regulators. Sections 4.2, 4.4, 4.5, and 20.2 of the BoomTalk™ VoIP Terms of Service do not apply to Client Data or Protected Health Information, which are governed by Section 13 of this MSA and the Business Associate Agreement, and nothing in the BoomTalk™ VoIP Terms of Service or the 911/E911 Notification and Disclosures limits either Party’s liability for gross negligence, willful misconduct, or violation of law, except to the extent permitted by 47 U.S.C. § 615a. No term of an Order, addendum, or other Contract Document will be given effect to the extent it would cause either Party to violate the HIPAA Rules.

1.4 Changes to the Agreement

The Agreement may be amended only by a written amendment signed by both Parties. Provider may publish new versions of its standard documents from time to time, but a new version applies to an existing Order only: (a) when Client agrees to it in a signed writing; (b) at the start of a Renewal Term, if Provider has given Client written notice identifying the new version and summarizing the changes at least ninety (90) days before that Renewal Term begins, and Client has not given notice of non-renewal; or (c) to the extent a change is required by a change in applicable law or regulation, in which case Provider will give Client written notice and the change will be no broader than the legal requirement. Client's continued use of the Services does not, by itself, constitute acceptance of any change. The following are not amendments and do not require Client's signature: annual escalation under Section 3.3, pass-through Surcharges under Section 3.4, and substitution of a Third-Party Service under Section 8.4.

1.5 Commitments in the Order

The service descriptions, inclusions, quantities, and service commitments stated in an Order are binding obligations of Provider, as qualified by the Contract Documents. Cover letters, taglines, headings, and general marketing statements in a proposal are not commitments.

1.6 Certain Definitions

"Security Incident" has the meaning given in Section 1.1 of the Service Level Schedule. "Breach," "Protected Health Information" (or "PHI"), and "HIPAA Rules" have the meanings given in the Business Associate Agreement. A "Data Security Event" means a Breach, or a Security Incident that results in the unauthorized acquisition, use, or disclosure of Client Data.

2. Services

2.1 Services

Provider will deliver the services identified in the Order (the “Services”) as described in the applicable Service Attachments and Schedule of Services. Except for Supplemental Services and Project Services, the Services are limited to those identified in the Order. Provider may decline to perform any requested service that would violate applicable law.

2.2 Supplemental Services

“Supplemental Services” are additional services or equipment Client requests on a one-off or emergency basis that are outside the scope of the Services. Provider will tell Client the applicable fees and obtain Client’s approval (which may be given by e-mail or in a support ticket) before providing them. Provider has no obligation to identify a need for or to provide Supplemental Services. Supplemental Services carry the warranty in Section 11.1.

2.3 Project Services

Where Client requests work that is outside the scope of any Order and not suited to treatment as Supplemental Services (for example, major system upgrades, office relocations, data center moves, or new system installations), Provider will prepare a separate Order, statement of work, or Service Attachment for Project Services describing the scope and fees. Installation dates are good-faith estimates. Client is responsible for site readiness, including power, communications lines, and environmental controls.

2.4 Business Hours

“Business Hours” means 8:00 a.m. to 6:00 p.m. Pacific Time, Monday through Friday, excluding the following “Observed Holidays”: New Year’s Day, Memorial Day, Independence Day, Labor Day, Thanksgiving Day, the day after Thanksgiving, and Christmas Day. When an Observed Holiday

falls on a weekend, Provider may observe it on the nearest business day. An Order may state different Business Hours. Security Incident response under the Service Level Schedule is available twenty-four (24) hours a day, every day, at no additional charge.

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3. Fees and Payment

3.1 Service Fees

Fees for the Services ("Service Fees") are stated in the Order. Work outside the Order is performed on a time-and-materials basis at the rates stated in the Order or, if none are stated, at Provider's then-current published rates, with Client's prior approval.

3.2 Quantity Adjustments

Per-user, per-device, per-location, and similar quantities are measured monthly. Additions are billed from the month in which they are added. Users and devices that have been inactive for more than thirty (30) consecutive days are removed from the monthly count at Client's request or on Provider's monthly inventory. Reductions are applied from the next invoice, but during the Initial Term billed quantities will not fall below the minimum stated in the Order or, if the Order states none, ninety percent (90%) of the quantities in the Order as signed (the "Minimum Commitment"). "User" means Client's employees, contractors, or agents who are authorized to use the Services; Users do not include Client's patients, customers, or other third parties. "Device" means any equipment covered by the Services, whether owned by Client or provided by Provider.

3.3 Annual Service Fee Escalation

Unless the Order states a different rate or states that Service Fees are fixed, recurring Service Fees increase automatically on each anniversary of the Order Effective Date by five percent (5%) of the recurring Service Fees then in effect. For any Order that includes a line item labeled

“NITEP,” “NITEP-discounted,” or “NITEP discount,” or that otherwise identifies Client as a participant in Provider’s Nonprofit IT Empowerment Program (“NITEP”), the annual increase is three percent (3%). The escalated fees are part of the Service Fees agreed in the Order; no advance notice is required, and escalation is not an amendment for purposes of any notice, consent, or termination provision. Escalation does not apply to prepaid amounts, Pass-Through Expenses, Surcharges, Supplemental Services, or Project Services.

3.4 Surcharges

Provider may pass through, without markup, amounts that governmental or quasi-governmental authorities require or permit Provider to collect or pay in support of statutory or regulatory programs, including federal and state Universal Service Fund contributions, telecommunications relay service and other regulatory program fees, and state, county, and municipal 911, E911, and Next Generation 911 surcharges, fees, and taxes (“Surcharges”). Where applicable law imposes a 911 surcharge on Client or requires Provider to collect one, Provider will state it separately on Client’s invoice and remit it as required by law. Except to the extent the law imposing a Surcharge exempts Client, a tax exemption certificate does not exempt Client from Surcharges. Additional 911/E911 charges for BoomTalk™ VoIP are described in the BoomTalk™ VoIP Terms of Service and the 911/E911 Notification and Disclosures.

3.5 Increases Above the Annual Escalation

Provider may propose an increase to recurring Service Fees greater than the annual escalation only on at least sixty (60) days’ written notice. Client may decline the increase and terminate the affected Services effective on the proposed effective date without any early termination fee. If Client does not terminate before that date, the increase takes effect as noticed.

3.6 Expenses

Client will reimburse only those out-of-pocket expenses that are stated in the Order or that Client approves in writing in advance (“Pass-Through

Expenses”), billed at cost. There is no charge for travel to Client locations within Los Angeles County, California, or Clark County, Nevada or to any location identified in the Order. Approved lodging, meals, and incidental expenses will not exceed the federal GSA per diem rates for the location.

3.7 Invoicing and Payment

Recurring Service Fees are invoiced monthly in advance. Unless the Order states otherwise, invoices for Services are due thirty (30) days after the invoice date, and invoices for hardware, software, and equipment purchased through Provider are due fifteen (15) days after the invoice date. For equipment orders over $5,000, Provider may require a deposit of up to fifty percent (50%) before placing the order. Undisputed amounts not paid when due bear interest at the lesser of one and one-half percent (1.5%) per month and the maximum rate permitted by law.

3.8 Invoice Disputes

Client may withhold any invoiced amount it disputes in good faith by giving Provider written notice describing the disputed items and the reason before the due date, and paying all undisputed amounts on time. The Parties will work in good faith to resolve the dispute within thirty (30) days. No interest accrues on a disputed amount while the dispute is pending; if the dispute is resolved in Provider’s favor, Client will pay the amount within ten (10) business days, and interest will then accrue from the original due date only if Client does not pay within that period.

3.9 Suspension

If Client fails to pay undisputed amounts within thirty (30) days after the due date, Provider may suspend the Services after giving at least fifteen (15) business days’ written notice that identifies the overdue amounts. Provider will not suspend Security Incident response for an active Security Incident, and suspension never limits Client’s access to Client Data under Section 13.1. Provider will restore the Services promptly after payment; no reactivation fee applies, but any labor reasonably required

to bring suspended systems back into a supported state is billable at the rates in the Order.

3.10 Taxes

Fees are exclusive of sales, use, excise, and similar taxes, which Client will pay unless it provides a valid exemption certificate. Each Party is responsible for taxes on its own income.

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4. Term and Termination

4.1 Term of this MSA

This MSA begins on the first Order Effective Date and continues while any Order remains in effect. Either Party may end this MSA on thirty (30) days' written notice when no Order is in effect.

4.2 Term of Orders and Renewal

Each Order begins on its Order Effective Date (or the service start date stated in it) and continues for the initial term stated in the Order (the "Initial Term"). Unless the Order states otherwise, an Order then renews for successive twelve (12) month periods (each, a "Renewal Term") unless either Party gives written notice of non-renewal at least sixty (60) days before the end of the then-current term. Services with no stated term are provided month-to-month and may be terminated by either Party at the end of the calendar month following written notice.

4.3 Termination for Cause

Either Party may terminate an Order on written notice if the other Party: (a) materially breaches the Agreement and does not cure the breach within thirty (30) days after receiving written notice describing it (or, for failure to pay undisputed amounts, within fifteen (15) business days); or (b) becomes insolvent, makes an assignment for the benefit of creditors, or ceases to operate in the ordinary course. Provider may also terminate an Order on written notice if Client uses the Services for unlawful

purposes. Client may also terminate as provided in the Service Level Schedule (chronic service level failure) and the Business Associate Agreement.

4.4 Early Termination by Client

Client’s right to terminate an Order for convenience during its Initial Term, and the early termination fee that applies, are stated in the applicable Service Attachment. No early termination fee applies when Client terminates under Section 3.5, Section 4.3, Section 16.3, the Service Level Schedule, or the Business Associate Agreement. Fees that Provider has waived in an Order in exchange for the Initial Term (such as onboarding fees) are not charged if the Order ends early; the early termination fee is Provider’s sole compensation for early termination.

4.5 No Termination for Convenience by Provider During the Initial Term

Provider will not terminate an Order for convenience during its Initial Term. Provider may decline to renew an Order by giving notice of non-renewal under Section 4.2.

4.6 Transition Assistance

On expiration or termination of an Order for any reason, Provider will cooperate in good faith in the orderly transition of the Services to Client or its designated provider, including: (a) delivering Client Data and Client Configuration Records under Section 13.1; (b) coordinating a cut-over date so that security and backup tools are not removed before replacement tools are in place, for up to thirty (30) days after termination at the then-current Service Fees; and (c) revoking Provider’s access and transferring administrative credentials. Transition work beyond these items is billable at the rates in the Order. Provider’s transition obligations under items (a) and (c) do not depend on payment status.

5. Shared Security Responsibilities

5.1 Provider’s Security Responsibilities

Provider is responsible for performing the security, monitoring, patching, backup, recovery, and network management Services identified in the Order in accordance with the Agreement and the Service Level Schedule, and with the care of a reasonably prudent managed IT and security services provider. Provider is responsible for losses to the extent caused by its failure to perform those Services as agreed, its negligence, its willful misconduct, or its breach of the Agreement, subject to Section 15.

5.2 No Guarantee of Prevention

No security system can prevent every attack. A Security Incident that occurs even though Provider performed the Services in accordance with the Agreement is not, by itself, a breach of the Agreement by Provider, and Provider is not responsible for the criminal acts of third parties except to the extent the loss was caused by Provider’s failure to perform the Services as agreed. Client is not required to pay any ransom, and nothing in the Agreement requires Client to do so.

5.3 Client’s Security Responsibilities

Client is responsible for: (a) systems, users, devices, and locations that are not covered by the Services in the Order; (b) the conduct of its personnel and authorized users; (c) physical security of its premises and on-premises equipment; (d) approving and funding remediation that is outside the Services; and (e) maintaining a backup of any data not covered by backup Services in the Order. Where an Order does not include managed security Services for a system, Client remains responsible for securing that system.

5.4 Security Recommendations

From time to time Provider will make recommendations about security, compliance, or end-of-life equipment. Provider will put each material

recommendation in writing (which may be in a support ticket or business review), with a risk rating and an estimated cost. If Client declines or defers a written recommendation, Client bears only those losses that implementing that specific recommendation would reasonably have prevented, and only to the extent the recommended measure was not already part of the Services.

5.5 Provider Access Controls

All Provider access to Client systems will use named or individually attributable accounts protected by multi-factor authentication where the system supports it, follow least-privilege principles, and be logged; Provider will make relevant access logs available to Client on reasonable request. Provider will remove a person’s access to Client systems within one (1) business day after that person no longer requires it. Client may revoke any Provider access at any time; to the extent a revocation prevents Provider from performing, affected service levels are suspended.

5.6 Personnel

Provider will ensure that its employees and individual contractors with access to Client systems or confidential data have passed a background check, are bound by written confidentiality obligations, and complete security and privacy training at least annually. Additional requirements for health care Clients are in the Business Associate Agreement.

5.7 Remote Access

Client authorizes Provider to access Client’s systems remotely to perform the Services without requesting permission each time, subject to Section 5.5.

6. Client Responsibilities

6.1 Assistance

Client will provide timely access to its personnel, facilities, systems, documentation, and credentials reasonably required for Provider to perform the Services, and will designate a primary contact. Provider is not responsible for a failure to perform to the extent caused by Client's failure to provide that assistance, and Provider will notify Client promptly when it believes such a failure is affecting the Services.

6.2 Environment

Client will maintain broadband Internet access, power, cabling, environmental controls, and surge protection appropriate for covered equipment, and will keep covered equipment under manufacturer warranty or support where the Service Attachment requires it. Client will notify Provider before making significant changes to its network.

6.3 Software Licensing

Client represents that it has the right to use, and to permit Provider to access and modify, any software Client asks Provider to work on, except software supplied by Provider under an Order. Assistance with software audits is billable at the rates in the Order.

6.4 Unsupported Software and Equipment

Provider is not responsible for losses to the extent caused by Client's continued use of software or equipment that is no longer supported by its manufacturer or publisher after Provider has identified it in writing as unsupported, except to the extent the loss results from Provider's failure to perform the Services as agreed.

6.5 Theft of Service

Client will notify Provider promptly if it becomes aware that the Services are being used fraudulently. Client is responsible for charges arising from

fraudulent use of the Services through Client's credentials or equipment, except to the extent caused by Provider's failure to perform the Services as agreed.

6.6 Third-Party Service Fees

Unless Provider has expressly undertaken them in writing, Client is responsible for fees charged by its other carriers and vendors, including charges for disconnecting services it is replacing.

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7. Equipment and Software

7.1 Provider-Owned Equipment

"Equipment" means equipment Provider installs or ships to Client to deliver the Services and that remains Provider's property; it does not include hardware Client buys from or through Provider. Equipment is provided on a rental basis and remains Provider's property. Client will take reasonable care of the Equipment, will not move, repair, or modify it without Provider's consent, and is responsible for loss or damage other than ordinary wear and tear or loss caused by Provider, up to its replacement value. On termination, Client will make the Equipment available for retrieval or return it at Provider's shipping expense. Before Equipment is returned, Provider will securely wipe any Client Data on it, or return that data to Client, in accordance with Section 13.

7.2 Provider-Supplied Software

Software Provider supplies to deliver the Services is licensed, not sold, and is subject to the applicable end-user license terms, which Provider will provide on request. Client will not copy, distribute, reverse engineer, or transfer that software except as permitted by law.

7.3 Client-Purchased Hardware

Hardware, software, and subscriptions that Client buys from or through Provider become Client's property on payment. Provider will pass

through all manufacturer warranties and will use commercially reasonable efforts to help Client obtain warranty service. Wherever reasonably possible, licenses and subscriptions will be registered in Client's name.

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8. Third-Party Services and Subcontractors

8.1 Third-Party Services

Some Services are delivered using software, cloud platforms, and services operated by third parties ("Third-Party Services"), which are listed with links to their terms in the Schedule of Third-Party Services. Those providers' terms govern Client's use of their products to the extent they apply to Client directly.

8.2 Provider's Responsibility

Provider is responsible for selecting, configuring, monitoring, and managing the Third-Party Services it uses to deliver the Services, and for the acts and omissions of its subcontractors in performing the Services, as if they were Provider's own, subject to Section 15. A "subcontractor" is a person Provider engages to perform part of the Services on its behalf, other than a provider of a Third-Party Service acting in that capacity. Provider is not responsible for defects inherent in a Third-Party Service or for a Third-Party Service provider's outage or breach that Provider could not reasonably have prevented or mitigated through performance of the Services, but in that event Provider will pursue available remedies against the provider, pass through any warranties, credits, or warranty payments it receives, and use commercially reasonable efforts to mitigate the effect on Client.

8.3 Data Shared with Third-Party Services

Provider will share Client Data with a Third-Party Service only as needed to deliver the Services and, where the data is Protected Health

Information, only with a provider that has agreed in writing to the restrictions required by the Business Associate Agreement.

8.4 Substitution

Provider may replace a Third-Party Service with a functionally equivalent or better service on at least thirty (30) days' written notice, if the replacement does not materially reduce the protection, functionality, or service levels of the Services. If Client reasonably objects in writing that a substitution materially reduces protection for its data, the Parties will discuss in good faith, and Client may terminate the affected Services without an early termination fee if the objection is not resolved within thirty (30) days.

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9. Intellectual Property

9.1 Provider Materials

Provider retains all rights in its tools, scripts, templates, methodologies, monitoring and management policies, documentation templates, and other pre-existing or generally applicable materials, and improvements to them ("Provider Materials"). Provider grants Client a non-exclusive, royalty-free license to use Provider Materials delivered as part of the Services for Client's internal purposes during the term of the Agreement.

9.2 Client Materials and Configuration Records

Client retains all rights in its data and materials. Configurations, settings, passwords and credentials, network diagrams, configuration backups, asset inventories, and documentation that are specific to Client's environment ("Client Configuration Records") belong to Client and are Client's Confidential Information, even where Provider created them; Provider Materials embedded in them remain Provider's and are licensed to Client under Section 9.1 for use in operating Client's environment, including after termination. Provider will keep Client Configuration Records reasonably current in its documentation system and will give

Client read access to them or deliver an export of them on request, at least once per calendar quarter at no charge.

9.3 Feedback

Provider may use suggestions and feedback that Client provides about the Services to improve its services, without obligation, provided that Provider does not disclose Client's Confidential Information.

9.4 Restrictions

Client will not resell the Services, copy or create derivative works of Provider Materials except as needed to use them under this Section, or remove proprietary notices.

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10. Confidentiality

10.1 Confidential Information

"Confidential Information" means non-public information that one Party discloses to the other in connection with the Agreement and that is marked or identified as confidential or that a reasonable person would understand to be confidential. Client's Confidential Information includes Client Data and Client Configuration Records. Provider's Confidential Information includes its non-public pricing, Provider Materials, and security reports about Provider's own systems.

10.2 Obligations

The receiving Party will use the disclosing Party's Confidential Information only to perform or receive the Services, will protect it with at least reasonable care, and will disclose it only to its employees, contractors, and advisers who need to know it and are bound by confidentiality obligations at least as protective as this Section.

10.3 Exclusions

Confidential Information does not include information that: (a) is or becomes public without fault of the receiving Party; (b) the receiving Party already possessed without restriction; (c) the receiving Party receives from a third party with the right to disclose it; or (d) the receiving Party develops independently. These exclusions do not apply to Protected Health Information or other regulated personal information, which is governed by the Business Associate Agreement and the Data Processing Agreement.

10.4 Compelled Disclosure

The receiving Party may disclose Confidential Information to the extent required by law or court order, after giving the disclosing Party prompt notice where legally permitted and reasonable cooperation in seeking protective treatment.

10.5 Agreement Terms

Neither Party will disclose the non-public pricing in an Order except to its advisers, auditors, funders, grantors, and regulators, or as required by law. Client may share the Agreement with its board, auditors, grantors (including federal and state grant agencies), and regulators.

10.6 Publicity

Provider may identify Client by name as a client. Any other use of Client’s name or logo in marketing requires Client’s prior written consent, which Client may withdraw at any time.

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11. Warranties

11.1 Service Warranty

Provider warrants that it will perform the Services in a professional and workmanlike manner, consistent with generally accepted industry

standards for managed IT and security services, and materially in accordance with the Contract Documents. If Services do not conform, Client will notify Provider in writing within thirty (30) days after Client becomes aware of the non-conformity, and Provider will promptly re-perform or correct them at no additional charge. If Provider cannot correct a material non-conformity within a reasonable period, Client may terminate the affected Services without an early termination fee and receive a refund of any prepaid fees for the period after termination. These remedies are in addition to the service level remedies in the Service Level Schedule and do not limit Client’s remedies for breach of the Business Associate Agreement or Section 10.

11.2 Mutual Warranties

Each Party warrants that it has authority to enter into the Agreement and that the person signing an Order is authorized to do so. Provider warrants that it is not excluded, debarred, or suspended from participation in federal health care programs or federal procurement, and will notify Client promptly if that changes.

11.3 Disclaimer

EXCEPT AS EXPRESSLY STATED IN THE AGREEMENT, PROVIDER DOES NOT WARRANT THAT THE SERVICES WILL BE UNINTERRUPTED OR ERROR-FREE OR WILL PREVENT ALL SECURITY INCIDENTS, AND EACH PARTY DISCLAIMS ALL IMPLIED WARRANTIES, INCLUDING MERCHANTABILITY AND FITNESS FOR A PARTICULAR PURPOSE, TO THE EXTENT PERMITTED BY LAW. Third-Party Services are warranted only by their providers, except as stated in Section 8.2.

12. Compliance with Laws

12.1 Each Party’s Compliance

Each Party will comply with the laws that apply to it in performing the Agreement. Provider will comply with the laws that apply to it as a provider of managed IT, security, hosting, and communications services, including, where it is a business associate or service provider, HIPAA, the California Confidentiality of Medical Information Act, and applicable state data breach and privacy laws. Client remains responsible for its own compliance obligations as a health care provider, employer, or other regulated entity.

12.2 Compliance Assistance

Unless an Order includes compliance Services, Provider does not provide legal advice or certify Client’s compliance. Provider will reasonably cooperate with Client’s audits, risk analyses, and regulatory inquiries that concern the Services, including by completing reasonable security questionnaires; extensive or recurring audit support is billable at the rates in the Order.

12.3 Federal Award Requirements

If Client pays for the Services with federal grant or award funds and identifies in the Order or in writing the federal contract provisions that apply (for example, those required by 2 C.F.R. Part 200, Appendix II), Provider will comply with those provisions to the extent they apply to Provider. Provider will retain records related to the Agreement for the period required by those provisions. Any termination for convenience that those provisions require is subject to payment for Services performed through the termination date and for non-cancellable third-party commitments Provider made for Client under the Order. Provider will not furnish to Client covered telecommunications or video surveillance equipment or services prohibited by 2 C.F.R. § 200.216.

13. Client Data and Data Protection

13.1 Client Data

“Client Data” means data, files, e-mail, records, logs, and other content that Client or its users store in, transmit through, or generate in systems covered by the Services, including backups of that data. As between the Parties, Client owns all Client Data. Provider will access, use, and disclose Client Data only to perform the Services, as Client directs, or as required by law. Provider will not withhold or condition Client’s access to Client Data or to administrative credentials for Client’s systems, including during a payment dispute or after termination, and will delete Client Data only as Client directs or as provided in this Section and the Business Associate Agreement. Within thirty (30) days after Client’s request, Provider will deliver Client Data and Client Configuration Records in the native or industry-standard export formats available from the systems used to deliver the Services, at no charge for one export per calendar quarter and for the export on termination; additional exports, conversion to other formats, and migration work are billable at the rates in the Order. On termination, Provider will deliver that export within thirty (30) days after the later of the termination date and the end of any transition period under Section 4.6 (the “Exit Date”). Provider will delete Client Data from its systems within thirty (30) days after Client confirms receipt of the export (or sixty (60) days after delivery, if Client does not respond), and from backup media when that media’s retention period expires, but not later than ninety (90) days after the Exit Date, except as applicable law requires; Provider will certify deletion on request.

13.2 Protected Health Information

If Client is a “covered entity” or “business associate” under HIPAA, or if Provider will create, receive, maintain, or transmit Protected Health Information on Client’s behalf, the Business Associate Agreement applies to the Agreement automatically and is part of it, whether or not the Order references HIPAA. Client should identify in the Order, or in writing, that it

is a covered entity or business associate and designate its privacy and security contacts.

13.3 Other Regulated Data

For personal information subject to the California Consumer Privacy Act, the Gramm-Leach-Bliley Act, New York SHIELD Act, other state privacy laws, or DoD/CMMC requirements for Controlled Unclassified Information, the Data Processing Agreement applies to the extent Provider processes that information. Client will tell Provider in the Order or in writing before providing data subject to the GDPR, UK data protection law, or DoD/CMMC requirements, so that the Parties can agree appropriate terms; Provider may decline to process that data until they have.

13.4 Data Location

Provider will store Client Data at rest only in data centers located in the United States, unless Client approves otherwise in writing. Personnel of Provider’s subcontractors and Third-Party Services may access Client Data remotely from other locations solely as needed to provide support, security monitoring, and incident response, subject to the Business Associate Agreement where it applies.

13.5 Provider’s Information Security Program

Provider maintains a written information security program with administrative, technical, and physical safeguards appropriate to the nature of the Services and the data involved, including encryption of Client Data in transit and at rest on Provider-managed systems where reasonably feasible, and reviews it at least annually.

14. Indemnification

14.1 By Provider

Provider will defend Client and its directors, officers, and employees against any claim brought by a third party (including a government authority), and will pay the resulting damages, fines, penalties, settlements, and reasonable attorneys' fees, to the extent the claim arises from: (a) Provider's gross negligence or willful misconduct; (b) Provider's breach of the Business Associate Agreement, the Data Processing Agreement, or Section 10 or 13 of this MSA; (c) a Data Security Event to the extent caused by Provider's or its subcontractors' failure to perform the Services as agreed or their negligence; (d) a claim that Provider Materials or Provider-supplied software infringe a third party's intellectual property rights; or (e) bodily injury or damage to tangible property caused by the negligence of Provider personnel at Client's premises.

14.2 By Client

Client will defend Provider and its directors, officers, and employees against any claim brought by a third party (including a government authority), and will pay the resulting damages, fines, penalties, settlements, and reasonable attorneys' fees, to the extent the claim arises from: (a) Client's gross negligence or willful misconduct; (b) Client's breach of its obligations under the Business Associate Agreement or the Data Processing Agreement; (c) content that Client or its users provide that infringes a third party's rights or violates law, or Client's use of the Services in violation of law, excluding claims arising from a Data Security Event; (d) software or licenses that Client supplied or directed Provider to use, other than software supplied by Provider; or (e) bodily injury or damage to tangible property caused by the negligence of Client personnel.

14.3 Procedure

The indemnified Party will give prompt written notice of the claim (a delay excuses the indemnifying Party only to the extent it is prejudiced), allow the indemnifying Party to control the defense and settlement, and provide reasonable cooperation at the indemnifying Party's expense. The indemnifying Party may not settle a claim in a way that admits fault on behalf of, or imposes non-monetary obligations on, the indemnified Party without its consent, which will not be unreasonably withheld. Neither Party is obligated to indemnify the other to the extent a claim arises from the indemnified Party's own acts or omissions.

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15. Limitation of Liability

15.1 Exclusion of Indirect Damages

EXCEPT FOR EXCLUDED CLAIMS AND BREACH COSTS, NEITHER PARTY IS LIABLE TO THE OTHER FOR INDIRECT, INCIDENTAL, CONSEQUENTIAL, SPECIAL, EXEMPLARY, OR PUNITIVE DAMAGES, OR FOR LOST PROFITS OR LOST REVENUE, ARISING OUT OF THE AGREEMENT, EVEN IF ADVISED OF THEIR POSSIBILITY. "Breach Costs" means the following reasonable, documented costs incurred by Client to the extent resulting from a Data Security Event caused by Provider's or its subcontractors' failure to perform the Services as agreed, negligence, or breach of the Business Associate Agreement, the Data Processing Agreement, or Section 10 or 13: forensic investigation; notification of affected individuals, regulators, and media as required by law; call center support; credit monitoring and identity protection for affected individuals for up to two (2) years; restoration of Client Data from backups; and fines and penalties imposed by a government authority to the extent attributable to Provider's acts or omissions. Breach Costs are treated as direct damages.

15.2 General Cap

EXCEPT FOR EXCLUDED CLAIMS AND CLAIMS SUBJECT TO SECTION 15.3, EACH PARTY'S TOTAL LIABILITY ARISING OUT OF OR RELATED TO AN ORDER AND THE AGREEMENT WILL NOT EXCEED THE SERVICE FEES PAID AND PAYABLE UNDER THAT ORDER FOR THE TWELVE (12) MONTHS IMMEDIATELY BEFORE THE EVENT GIVING RISE TO THE CLAIM (OR, DURING THE FIRST TWELVE MONTHS OF THE ORDER, TWELVE TIMES THE AVERAGE MONTHLY RECURRING SERVICE FEES UNDER THE ORDER) (THE "GENERAL CAP").

15.3 Data Protection Cap

EACH PARTY'S TOTAL LIABILITY FOR BREACH COSTS, FOR BREACH OF THE BUSINESS ASSOCIATE AGREEMENT, THE DATA PROCESSING AGREEMENT, OR SECTION 10 OR 13, AND UNDER SECTION 14.1(b) AND (c) AND SECTION 14.2(b), WILL NOT EXCEED, IN THE AGGREGATE FOR EACH ORDER, THE GREATER OF (a) THREE (3) TIMES THE GENERAL CAP AND (b) ONE MILLION DOLLARS ($1,000,000), OR SUCH HIGHER AMOUNT AS THE ORDER STATES (THE "DATA PROTECTION CAP"). THE DATA PROTECTION CAP IS SEPARATE FROM, AND IN ADDITION TO, THE GENERAL CAP. DEFENSE COSTS UNDER SECTION 14.1(b) AND (c) COUNT TOWARD THE DATA PROTECTION CAP. IF IT IS FINALLY DETERMINED THAT A DEFENDED CLAIM DID NOT ARISE FROM A MATTER COVERED BY THE INDEMNITY, THE INDEMNIFIED PARTY WILL REIMBURSE THE REASONABLE DEFENSE COSTS ATTRIBUTABLE TO THE UNCOVERED PORTION.

15.4 Excluded Claims

THE LIMITATIONS IN SECTIONS 15.1 THROUGH 15.3 DO NOT APPLY TO: (a) A PARTY'S FRAUD, GROSS NEGLIGENCE, OR WILLFUL MISCONDUCT; (b) CLIENT'S OBLIGATION TO PAY SERVICE FEES AND OTHER AMOUNTS DUE UNDER THE AGREEMENT; (c) A PARTY'S INDEMNITY OBLIGATIONS UNDER SECTION 14.1(a), (d), OR (e) OR SECTION 14.2(a), (c), (d), OR (e); OR (d) LIABILITY THAT CANNOT BE

LIMITED UNDER APPLICABLE LAW, INCLUDING CALIFORNIA CIVIL CODE SECTION 1668 (COLLECTIVELY, “EXCLUDED CLAIMS”).

15.5 Insurance Does Not Limit Liability

The existence or amount of insurance does not reduce either Party’s liability, and neither Party’s recovery is limited to insurance proceeds, except as the caps in this Section provide.

15.6 Basis of the Bargain

The Parties agree that the limitations in this Section allocate risk in a manner reflected in the Service Fees and are a fair and reasonable basis for the Agreement.

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16. Insurance

16.1 Provider Insurance

During the term of each Order and for at least one (1) year afterward, Provider will maintain, with insurers rated A- or better by A.M. Best: (a) technology errors and omissions (professional liability) insurance covering Provider’s managed IT, security, hosting, and communications services, of at least $1,000,000 per claim, which may be combined with the cyber liability policy; (b) cyber liability insurance covering network security and privacy liability, breach response costs, regulatory defense and penalties where insurable, and cyber extortion, of at least $2,000,000 per claim; (c) commercial general liability insurance of at least $1,000,000 per occurrence; and (d) workers’ compensation insurance as required by law. An Order may require higher limits. Provider will name Client as an additional insured on its commercial general liability policy, and on other policies where the insurer permits it, and will provide certificates of insurance before the Services begin and on renewal of each policy.

16.2 Client Insurance

Client will maintain commercial general liability, workers' compensation as required by law, and cyber liability insurance appropriate to its operations, with cyber liability limits of at least $1,000,000, and will provide certificates on request.

16.3 Notice of Changes

Each Party will notify the other within thirty (30) days if any required coverage is cancelled or reduced below the required limits. If Provider's required coverage lapses and is not restored within thirty (30) days, Client may terminate the Agreement without an early termination fee.

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17. Disputes

17.1 Escalation

The Parties will first try to resolve any dispute through good-faith discussions between their executives for at least thirty (30) days after written notice of the dispute.

17.2 Arbitration

Any dispute not resolved by escalation will be settled by binding arbitration administered by the American Arbitration Association under its Commercial Arbitration Rules before a single arbitrator, in Los Angeles County, California, or another location the Parties agree. The arbitrator may not award damages excluded by Section 15. Judgment on the award may be entered in any court with jurisdiction. Either Party may seek temporary or preliminary injunctive relief in court to protect Confidential Information, Client Data, or intellectual property, and either Party may bring a claim within the jurisdiction of small claims court in that court. The Federal Arbitration Act, including its procedural provisions, governs this Section.

17.3 Time to Bring Claims

A claim must be brought within one (1) year after the claiming Party discovered, or reasonably should have discovered, the facts giving rise to it, except claims for unpaid fees and claims that applicable law does not permit to be shortened.

17.4 Continued Performance

During a dispute, Provider will continue to perform the Services and Client will continue to pay undisputed amounts, except where the Agreement has been terminated in accordance with its terms.

17.5 Attorneys’ Fees

The prevailing Party in any arbitration or court action to enforce the Agreement is entitled to its reasonable attorneys’ fees and costs.

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18. Non-Solicitation

During the term of the Agreement and for twelve (12) months afterward, neither Party will directly solicit for employment any employee of the other Party with whom it had direct contact in connection with the Services. General advertisements and job postings not targeted at the other Party’s employees, and hiring a person who responds to them, do not violate this Section. If a Party hires an employee as a result of a solicitation that violates this Section, it will pay the other Party, as liquidated damages and not as a penalty, an amount equal to twenty-five percent (25%) of that employee’s first-year base salary, which the Parties agree is a reasonable estimate of the cost of recruiting and training a replacement, damages that would otherwise be impracticable or extremely difficult to fix. Nothing in this Section restricts any individual’s right to seek or accept employment.

19. General

19.1 Notices

Notices under the Agreement must be in writing and are effective when delivered in person, by courier, or by e-mail to the addresses in the Order (with a copy, for notices to Provider, to legal@theboomcoinc.com), or three (3) business days after mailing by certified mail. Notices of breach, termination, or a Security Incident sent by e-mail should also be confirmed by telephone or by a second method where practicable, but failure to confirm does not affect the effectiveness of a notice. Either Party may change its notice address by notice.

19.2 Force Majeure

Neither Party is liable for a delay or failure caused by events beyond its reasonable control, such as natural disasters, fire, flood, widespread utility or Internet failures, epidemics, war, terrorism, civil unrest, labor actions not involving the affected Party's own workforce, or government orders ("Force Majeure"). A cyberattack is a Force Majeure event only to the extent it could not have been prevented or mitigated by the affected Party's performance of its security obligations under the Agreement. The affected Party will give prompt notice, use reasonable efforts to mitigate, and resume performance as soon as possible. Payment obligations for Services actually delivered are not excused. If a Force Majeure event prevents performance of a material part of the Services for more than thirty (30) days, either Party may terminate the affected Services on written notice without an early termination fee.

19.3 Assignment

Neither Party may assign the Agreement without the other Party's prior written consent, which will not be unreasonably withheld, except that either Party may assign the Agreement without consent to a successor to all or substantially all of its business or assets to which the Agreement relates, or in a merger or reorganization, if the successor agrees in writing to be bound and, for an assignment by Provider, the successor is

capable of performing the Services and the Business Associate Agreement. The assigning Party will give notice of any such assignment. Provider may use subcontractors under Section 8.2; doing so is not an assignment.

19.4 Independent Contractors

The Parties are independent contractors. Neither Party is the agent of the other except to the limited extent Client authorizes Provider in writing to act as its agent with carriers and vendors.

19.5 Electronic Signatures and Records

The Parties may sign Orders and other documents electronically, and electronic copies are as effective as originals.

19.6 Waiver; Severability

A failure or delay in exercising a right is not a waiver. If a provision is held unenforceable, it will be enforced to the maximum extent permitted and the remaining provisions remain in effect.

19.7 Governing Law

The Agreement is governed by the laws of the State of California, without regard to its conflict-of-laws rules, and by applicable federal law.

19.8 Survival

Sections 3 (as to amounts owed), 4.6, 7.1, 9, 10, 12.3, 13, 14, 15, 16.1, 17, 18, and 19, the Business Associate Agreement, and any other provision that by its nature should survive, survive termination or expiration.

19.9 No Third-Party Beneficiaries

The Agreement is for the benefit of the Parties and their permitted successors and assigns only.

19.10 Mutual Non-Disparagement

Neither Party will make public statements that are false and intended to damage the other Party's reputation. Nothing in this Section limits truthful statements in legal proceedings, to regulators or government agencies, to auditors or grantors, or as required by law.

19.11 Entire Agreement

The Contract Documents are the entire agreement of the Parties regarding the Services in each Order and supersede prior proposals, negotiations, and understandings about them. Pre-printed terms on Client purchase orders do not apply. Each Party has had the opportunity to review the Agreement with counsel, and no provision will be construed against either Party as its drafter.

Version history

VERSION	EFFECTIVE	STATUS
Master Services Agreement	November 2, 2026	Current — supersedes and replaces all prior versions. Restructured and rebalanced. Changes: contract documents identified by title and effective date and locked at signing; amendments require both Parties' signatures (unilateral amendment removed); order of precedence revised; Order commitments binding; Business Hours and holidays defined; quantity adjustments with inactive-device removal and a Minimum Commitment; NITEP trigger broadened; pre-approved expenses with GSA per diem; Net 30 service invoices; good-faith invoice disputes; no reactivation fee; no Provider termination for convenience during the Initial Term; no fee for early exit for Provider cause; transition assistance; shared security responsibilities replace the security, ransom, independent-backup, and malware disclaimers; written security recommendations; access controls and personnel

		screening; Client ownership of Client Data and Client Configuration Records; data never withheld; U.S. data storage; automatic Business Associate Agreement for HIPAA clients; mutual, fault-based indemnities; General Cap of twelve months' fees and separate Data Protection Cap; Breach Costs recoverable; Provider insurance minimums; one-year claims period; mutual non-solicitation; BoomTalk™ VoIP precedence clause (content-license, deletion, and liability carve-outs); federal award (2 C.F.R. Part 200) cooperation; arbitration under the Federal Arbitration Act.
Master Services Agreement	September 22, 2026	Superseded November 2, 2026 — archived version · PDF. Changes in that version: "Surcharges" expanded to define the term and expressly include 911, E911, and Next Generation 911 surcharges (pass-through without markup, separately stated where required, not waived by tax exemption certificates); NITEP escalation rate now triggered by an Order line item labeled "NITEP-discounted" or an express NITEP identification in the Order. No other change.
Master Services Agreement	September 1, 2026	Superseded September 22, 2026 — archived version · PDF. Changes in that version: replaced "Service Fee Rate Increases" with "Annual Service Fee Escalation" and "Increases Above the Annual Escalation."
Master Services Agreement	July 1, 2026	Superseded September 1, 2026 — archived version · PDF